**Spruce Info Tech, Inc**

1 E Uwchlan Ave, Suite 108

Exton, PA 19341,

USA

# Mutual Non-Disclosure Agreement

## 1. Parties

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into as of 02-Nov-2026 (the "Effective Date") by and between:

Spruce Info Tech, Inc., a corporation organized and existing under the laws of the State of Pennsylvania, with its principal place of business at 1 E Uwchlan Ave, Suite 108, Exton, PA 19341 ("Spruce Info Tech, Inc"); and

**CXFIRST AI PRIVATE LIMITED**, a company incorporated under the Companies Act, 2013 organized and existing under the laws of India, with its principal place of business at at 334, E-Block, Transport Nagar, Sector 14, Girwa, Udaipur, Rajasthan 313002, India **("CXFIRST")**.

Spruce Info Tech, Inc. and Partner are each referred to herein as a "Party" and collectively as the "Parties".

## 2. Purpose

The Parties wish to explore a potential business relationship pertaining to the joint development, evaluation, or collaboration on a blockchain-based competitive basketball game and related Web3 infrastructure (working title: "HoopsLegend") (the "Project"), including without limitation product and technical documentation, game systems, smart contracts, wallet and account systems, marketplace design, economy design, security models, and related software and services. In connection with such discussions, each Party may disclose certain of its confidential and proprietary information to the other Party. The Parties agree to protect such information in accordance with the terms of this Agreement.

## 3. Definition Of Confidential Information

For purposes of this Agreement, "Confidential Information" means any and all non-public information, in any form or medium, disclosed by or on behalf of one Party (the "Disclosing Party") to the other Party (the "Receiving Party"), whether before or after the Effective Date, that is designated as confidential or that, given the nature of the information or the circumstances of its disclosure, reasonably should be understood to be confidential. Confidential Information includes, without limitation:

Technical information, including but not limited to software architecture, algorithms, data models, smart contract code, source code, object code, application programming interfaces (APIs), wallet and account-abstraction designs, blockchain integration plans, indexing and infrastructure designs, game design

documents, security models, network designs, trade secrets, know-how, inventions (whether patentable or not), research, development, processes, and product plans.

Business information, including but not limited to business plans, financial projections, pricing information, customer and supplier lists, marketing strategies, sales data, roadmaps, partnership discussions, and internal reports.

The fact that the Parties are engaged in discussions or negotiations concerning the Project, the status of those discussions, and the terms of any potential transaction.

**4. Obligations Of The Receiving Party**

The Receiving Party agrees to:

**4.1 Non-Disclosure And Non-Use**

Hold the Disclosing Party's Confidential Information in strict confidence and not to disclose, publish, or disseminate it to any third party without the prior written consent of the Disclosing Party. The Receiving Party shall not use the Disclosing Party's Confidential Information for any purpose other than for the Purpose set forth in Section 2.

**4.2 Standard Of Care**

Protect the Disclosing Party's Confidential Information using at least the same degree of care it uses to protect its own confidential information of a similar nature, but in no event less than a reasonable degree of care.

**4.3 Permitted Disclosures**

Limit access to the Disclosing Party's Confidential Information to those of its employees, directors, officers, contractors, and legal or financial advisors (collectively, "Representatives") who have a need to know such information for the Purpose and who are bound by written confidentiality obligations at least as protective as those contained herein. The Receiving Party shall be responsible for any breach of this Agreement by its Representatives.

**5. Exclusions From Confidential Information**

The obligations under Section 4 shall not apply to information that the Receiving Party can demonstrate:

Was publicly known at the time of disclosure or becomes publicly known through no fault of the Receiving Party;

Was rightfully in the Receiving Party's possession without restriction prior to disclosure by the Disclosing Party;

Is rightfully obtained by the Receiving Party from a third party without breach of any confidentiality obligation; or

Is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

**6. Compelled Disclosure**

If the Receiving Party is required by law, regulation, or court order to disclose any Confidential Information, it shall, to the extent legally permissible, provide the Disclosing Party with prompt written notice of such requirement prior to disclosure to enable the Disclosing Party to seek a protective order or other appropriate remedy. The Receiving Party shall furnish only that portion of the Confidential Information which it is legally compelled to disclose and shall exercise reasonable efforts to obtain reliable assurance that confidential treatment will be accorded the disclosed information.

**7. Term And Termination**

The term of this Agreement shall commence on the Effective Date and continue for a period of five (5) years thereafter. The obligations of confidentiality and non-use with respect to any Confidential Information disclosed during the term shall survive termination or expiration of this Agreement for a period of five (5) years from the date of its disclosure, except for trade secrets, which shall be protected for as long as they remain trade secrets under applicable law.

**8. Return Of Materials**

Upon the written request of the Disclosing Party, or upon termination of this Agreement, the Receiving Party shall promptly return to the Disclosing Party or, at the Disclosing Party's option, destroy all tangible materials embodying the Disclosing Party's Confidential Information and all copies thereof. Notwithstanding the foregoing, the Receiving Party may retain one archival copy of Confidential Information for the sole purpose of ensuring compliance with its ongoing obligations under this Agreement.

**9. No License Or Warranty**

All Confidential Information remains the sole and exclusive property of the Disclosing Party. Nothing in this Agreement grants the Receiving Party any license, express or implied, under any patent, copyright, trademark, or other intellectual property right. All Confidential Information is provided "AS IS" without any warranty, express or implied, as to its accuracy or completeness.

**10. No Obligation**

This Agreement does not obligate either Party to enter into any further agreement or business relationship. Either Party may terminate discussions related to the Purpose at any time in its sole discretion.

**11. Remedies**

The Parties acknowledge that any breach of this Agreement may cause the Disclosing Party irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, in addition to any other remedies available at law, the Disclosing Party shall be entitled to seek injunctive or other equitable relief to prevent or restrain such breach, without the necessity of proving actual damages or posting a bond.

## 12. Miscellaneous

### 12.1 Governing Law And Venue

This Agreement shall be governed by and construed in accordance with the laws of the State of Pennsylvania, without regard to its conflict of laws principles. Any legal action or proceeding arising under this Agreement shall be brought exclusively in the state or federal courts located in Pennsylvania, and the Parties hereby irrevocably consent to the personal jurisdiction and venue therein.

### 12.2 Severability

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions will continue in full force and effect, and the invalid provision shall be reformed to the minimum extent necessary to make it valid and enforceable.

### 12.3 Entire Agreement

This Agreement constitutes the entire understanding between the Parties concerning the subject matter hereof and supersedes all prior and contemporaneous agreements, discussions, and understandings, whether oral or written. This Agreement may only be amended by a writing signed by both Parties.

### 12.4 Assignment

Neither Party may assign or transfer this Agreement, in whole or in part, by operation of law or otherwise, without the prior written consent of the other Party. Any attempted assignment in violation of this provision shall be void.

### 12.5 Notices

All notices required or permitted under this Agreement shall be in writing and shall be deemed given when delivered personally, sent by confirmed email, or mailed by registered or certified mail, return receipt requested, to the addresses first set forth above, or to such other address as a Party may specify in writing.

### 12.6 Waiver

The failure of either Party to enforce any provision of this Agreement shall not be deemed a waiver of future enforcement of that or any other provision.

**13. Signatures**

IN WITNESS WHEREOF, the Parties have executed this Mutual Non-Disclosure Agreement as of the Effective Date.

| **Spruce Info Tech, Inc.** | **CXFIRST AI PRIVATE LIMITED** |
| --- | --- |
| | Kapil Sharma<br>Digitally signed by Kapil Sharma<br>Date: 2026.11.02 15:11:16 +05'30' |
| By: _____ | By: _____ |
| Name: Falvio Castellani | Name: Kapil Sharma |
| Title: IT Director | Title: Director |
| Date: _____ | Date: 02-Nov-2026 |